

ELIZABETH II



1977 CHAPTER ii

An Act to extend the time for the compulsory purchase of certain lands; and for other purposes.

[26th May 1977]

WHEREAS by the Transport Act 1962 the British Transport 1962 c. 46.
Docks Board (in this Act referred to as "the Board")
were established:

And whereas it is the duty of the Board under the Transport Act 1962 (inter alia) to provide, to such extent as they may think expedient, port facilities at the harbours (as defined by the said Act) owned or managed by the Board and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them and the Board are empowered to operate the harbours owned or managed by them:

And whereas it is expedient that the period now limited for the compulsory purchase of certain lands should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title. 1. This Act may be cited as the British Transport Docks Act 1977.

Interpretation. 2.—(1) In this Act, unless the subject or context otherwise requires—

1974 c. xxii.

“the Act of 1974” means the British Transport Docks Act 1974;

1976 c. xvii.

“the Act of 1976” means the British Transport Docks Act 1976;

“the Board” means the British Transport Docks Board;

“enactment” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“land” includes any estate or interest in land and land covered by water.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended by, or by virtue of, any subsequent enactment, including this Act.

Extension of time.

3.—(1) The period now limited by the Act of 1974 for the compulsory purchase of the lands authorised to be acquired by section 6 (Power to acquire lands) of the Act of 1974 and by section 7 (Power to acquire lands) of the Act of 1976 is hereby extended until 31st December 1982.

(2) The powers for the compulsory purchase of the said lands shall cease on the said date except in so far as any such powers shall by then have been exercised.

Powers to owners and lessees to give notice as to purchase of lands.

4.—(1) In this section—

“the enabling Act” means the Act of 1974 or the Act of 1976;

“the land” means any land which is for the time being authorised to be acquired compulsorily by the Board by

the enabling Act for the purposes of Works Nos. 1 and 2 authorised by Part III (Works) of the Act of 1974 and Work No. 1 authorised by the Act of 1976;

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

(2) If at any time after 31st December 1977 any person being the owner or lessee of the land shall give notice in writing to the Board of his desire for the acquisition as soon as may be by the Board of his interest in any part of the land specified in the notice the Board shall within a period of three months after the receipt of such notice—

- (a) enter into a contract with him for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or
- (b) serve on him a notice to treat for the compulsory acquisition of his interest in the land specified in his notice, or in such part thereof as may be required by the Board; or
- (c) serve on him notice in writing of the Board's intention not to proceed with the purchase of his interest in the land specified in the notice.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice, then—

(a) if the Board—

- (i) fail to comply with that subsection; or
- (ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or
- (iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease; or

- (b) if his interest in part only of the land so specified is acquired in pursuance of a contract or notice to treat under paragraphs (a) or (b) of that subsection the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

Repeals.

5. The enactments specified in the first and second columns of the Schedule to this Act (which enactments so far as hereby repealed no longer have effect) are repealed to the extent mentioned in the third column thereof.

Costs of Act.

6. All costs, charges and expenses of, and incidental to, the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULE

Section 5.

REPEALS

Chapter (1)	Short title (2)	Extent of repeal (3)
1863 c. cxix	The Southampton Harbour Act 1863	So much of section 4 (Repeal of existing Acts; but saving certain sections) and Schedule A as relates to sections 19 and 20 of the Act 43 Geo. 3 c. 21.
1903 c. xci	The Southampton Harbour Act 1903	Section 6 (Further provisions as to sums payable by Board to corporation).

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British Transport Docks Act 1977

CHAPTER ii

ARRANGEMENT OF SECTIONS

Section

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2. Interpretation.
3. Extension of time.
4. Powers to owners and lessees to give notice as to purchase of lands.
5. Repeals.
6. Costs of Act.

SCHEDULE—Repeals.